

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

HMM CO. LTD, *Respondent*.

DOCKET NO. 22-20

Served: April 24, 2023

ORDER OF: Linda S. CROVELLA, *Administrative Law Judge*.

ORDER ON COMPLAINANT'S FILINGS

Complainant MSRF, Inc. ("MSRF" or Complainant) filed a complaint alleging violations of the Shipping Act Sections 41102(c), 41104(a)(2), 41104(a)(5), 41104(a)(9), and 41104(a)(10) regarding negotiations for and completion of a written service contract. Complaint at 5-7. Respondent HMM Co. Ltd. ("HMM" or Respondent) denies the allegations and raises affirmative defenses. Answer at 5-11.

An Amended Scheduling Order issued on January 13, 2023, revising dates for discovery deadlines and the briefing schedule as proposed by the parties. The following amended schedule for briefing was ordered:

April 21, 2023	Complainant's brief, proposed findings of fact, and appendix
May 12, 2023	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
May 24, 2023	Complainant's reply brief and responses to proposed findings of fact

On April 21, 2023, the date the Complainant's initial brief, proposed findings of fact, and appendix were due, Complainant filed Proposed Findings of Fact, Appendix, and a Motion for Confidential Treatment, all of which referred to or were filed in support of a Motion for Summary Decision. The electronic mail to which the April 21, 2023, filings were attached referenced a Motion for Summary Decision that was also referenced as attached and was intended to be filed on that day. The missing motion was filed by electronic mail on April 24, 2023, immediately after a communication was sent to the parties seeking clarification.

The time for filing a dispositive motion in this proceeding has passed since discovery has closed, the initial brief was scheduled to be filed on April 21, 2023, and Complainant did not

request an extension of the Amended Scheduling Order. Deciding a dispositive motion at this juncture would only delay the proceeding and prevent the undersigned from resolving disputed facts. Given the timing of the submission labeled as a “Motion for Summary Decision,” along with the corresponding filing of the Proposed Findings of Fact and Appendix, it is likely that Complainant intended the filing to be its Initial Brief. Accordingly, the Motion for Summary Decision will be accepted as the Complainant’s Initial Brief. Respondent should not respond to the Motion for Summary Decision as described under 46 C.F.R. § 502.70; rather, Respondent should abide by the briefing schedule above and submit its Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix on May 12, 2023.



Linda S. Harris Crovella
Administrative Law Judge